

Superior Court of the State of California
County of Orange
TENTATIVE RULINGS FOR DEPARTMENT CM08
Temporary Judge Catherine Evans

Date: 07/01/2026

Court Room Rules and Notices

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#	Case Name	Tentative
1	Bridges – Probate 30-2024-01384626	Demurrer Tiffany L. Bridges’ Demurrer (ROA 81) is OVERRULED as moot. Bridges demurred to Petitioner Inma Unkle’s Petition to Invalidate Disclaimer and Determine Creditor’s Interest (ROA 61). The demurrer is unopposed. However, on June 17, 2026—the day before the opposition was due—Inma Unkle filed an amended petition (ROAs 92 & 95). Accordingly, the petition that is the subject of the demurrer is no longer the operative pleading. Moving party to give notice.
2	Behrens - Trust 30-2024-01437040	Motion for Trial Preference Petitioner Stanley Behren’s unopposed Motion for Trial Preference (ROA 52) is GRANTED. Petitioner seeks preferential trial setting under Code of Civil Procedure section 36 which provides, in relevant parts: (a) A party to a civil action who is over 70 years of age may petition the court for a preference, which the court shall grant if the court makes both of the following findings: (1) The party has a substantial interest in the action as a whole. (2) The health of the party is such that a preference is necessary to prevent prejudicing the party’s interest in the

		litigation. ... (e) Notwithstanding any other provision of law, the court may in its discretion grant a motion for preference that is supported by a showing that satisfies the court that the interests of justice will be served by granting this preference. (f) Upon the granting of such a motion for preference, the court shall set the matter for trial not more than 120 days from that date and there shall be no continuance beyond 120 days from the granting of the motion for preference except for physical disability of a party or a party's attorney, or upon a showing of good cause stated in the record. Any continuance shall be for no more than 15 days and no more than one continuance for physical disability may be granted to any party. Petitioner has established that he is 103 years old, and his health is such that a preference is necessary to prevent prejudicing his interest in the litigation. (Behrens Dec., ¶¶ 1-9.) The parties should be prepared to discuss when they will be prepared to proceed to trial and the estimated length of trial. The unopposed motion is GRANTED. Petitioner to give notice.
3	Logan – Trust 30-2025-01474919	Motion to Be Relieved Buffington Law Firm, PC's motion to be relieved as counsel for Aidan Logan (ROA 297) is GRANTED. The court will sign the Proposed Order. Moving counsel is ORDERED to give notice to all parties to this action and file proof of service of the court's order as entered. Withdrawal will be effective upon filing of proof of service of the order.
4	Turner – Conservatorship 30-2017-00950100	

5	Wierman – Probate 30-2023-01323258	Motion for Continuance Lisa Aranda’s Motion to Continue Trial (ROA 249) is DENIED as moot. The motion seeks to continue the trial from April 21, 2026 to a date on or after July 6, 2026. On April 21, 2026, the trial was continued to November 3, 2026. Accordingly, the motion is moot. Moving party to give notice.
6	Justin – Trust 30-2023-01357386	<i>Motion to Compel continued to 03/17/2027 at 09:00 AM in Department CM06</i>
7	Taylor – Trust 30-2022-01291239	<i>Motion – Enforce Settlement continued to 07/08/2026 at 09:00 AM in Department CM08</i>
8	Vaughan – Trust 30-2023-01345317	Motion to Quash Subpoena Trustee Martin Lejnieks’ (Lejnieks) Motion to Quash John Christian Vaughan’s Deposition Subpoena for Production of Business Records to Allied World Insurance Company (ROA 237) is GRANTED. Lejnieks’ accompanying request for sanctions is GRANTED in the amount of \$3,260. This action arises out of the Vaughan Family Trust dated May 18, 2016 (Trust). Upon the death of the settlors, the Trust was to be divided into the Survivor’s Trust and the Family Trust. Petitioner John Christian Vaughan (Vaughan) is trustee of the Survivor’s Trust. Lejnieks, a licensed professional fiduciary, is the court-appointed successor trustee of the Family Trust. In this proceeding, Vaughan has made various allegations of wrongdoing against Lejnieks in connection with his role as trustee of the Family Trust. In March 2026, Vaughan issued a deposition subpoena to Allied World Insurance Company, Lejnieks’ professional liability insurer. The subpoena seeks: (1) all documents relating to any claim, tender, demand, or notice submitted by Lejnieks in connection with this proceeding or the underlying trust; and (2) all communications between Lejnieks and his insurer relating to this proceeding or the underlying trust,

including communications regarding any claim, etc. made by Lejnieks. Lejnieks asks this court to quash the subpoena.

California law provides for a broad standard of discovery. (Code of Civ. Proc., § 2017.010.) However, there are limits and one of those limits is found within Code of Civil Procedure section 2017.210 which reads, in full:

A party may obtain discovery of the existence and contents of any agreement under which any insurance carrier may be liable to satisfy in whole or in part a judgment that may be entered in the action or to indemnify or reimburse for payments made to satisfy the judgment. This discovery may include the identity of the carrier and the nature and limits of the coverage. A party may also obtain discovery as to whether that insurance carrier is disputing the agreement's coverage of the claim involved in the action, ***but not as to the nature and substance of that dispute***. Information concerning the insurance agreement is not by reason of disclosure admissible in evidence at trial.

(Emphasis added.)

In his opposition, Vaughan acknowledges the subpoena seeks the types of communications excluded from discovery under section 2017.210. He states: "the subpoena seeks, among other things, claim tenders, notices, reservation of rights letters, and coverage determinations." (Opposition at 4:16-17.) He argues the documents are highly relevant because: "[d]ocuments relating to Lejnieks' [submission of a claim], the insurer's response, and any coverage position are directly relevant to Trustee's administration of the Trust, including whether he recognized potential liability, when he did so, and how he characterized his conduct to a third party." (Opposition at 5:25-6:1.)

In addition to seeking documents that are specifically excluded by section 2017.210, the broad category of "all communications" between Lejnieks and his insurer—who is providing his defense in this action—calls for communications protected by the attorney-client privilege.

		Because the subpoena is drafted to primarily seek documents outside the scope of discovery, the motion to quash is GRANTED. The court exercises its discretion under Code of Civil Procedure section 1987.2 to GRANT the accompanying request for sanctions in the amount of \$3,260 (8 hours at \$400 per hour plus a \$60 filing fee.) Lejnieks is directed to give notice.
9	Townes – Elder Abuse 30-2026-01544367	<i>Motion for Attorney Fees continued to 07/08/2026 at 09:00 AM in Department CM06</i>
10	Anderson - Conservatorship 30-2024-01440736	<i>Off Calendar, pursuant to Stipulation and Order (ROA 229), Motions deemed withdrawn with prejudice</i>
11	Hubert – Trust 30-2020-01166569	<i>Off Calendar, pursuant to Substitution of Attorney filed 05/08/2026 (ROA 429)</i>
12	O’Campo – Probate 30-2024-01426035	Motion to Void Deed Petitioner Terry Galvan-Ortiz’s Motion to Void Deed (ROA 89) is DENIED. As an initial matter, the motion is procedurally defective because no proof of service has been filed. (Cal. Rules of Court, rule 3.1300(c) [“Proof of service of the moving papers must be filed no later than five court days before the time appointed for the hearing].) Further, the parties who Petitioner asserts took the property by deed, i.e., Wiliam O’Campo and, subsequently, Jose Mariano Santiago Garcia and Ventura Santiago Garcia, are not before this court and have no notice of this proceeding. Finally, the motion raises evidentiary issues that should be addressed by a petition pursuant to Probate Code section 850. For the foregoing reasons, the motion is DENIED. The court will give notice.